

## MEMORANDUM TO THE FILE

### **Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

#### I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

#### II. DESCRIPTION OF ITEM OR SERVICE:

The requirement is for a "Mobile Library Shelving System Upgrade." This involves dismantling the existing system, retrofitting the carriages with new controls, electronics, wiring, and motors, and upgrading the safety features. The existing carriages and shelving will be retained.

Intended Use: This shelving system is essential for the proper storage of music and historic items in the USMC Band's music library, while maximizing the use of available space. The upgrade is required because the manufacturer has discontinued service parts for the current 21-year-old system, making the electrical components obsolete.

Required Source: Spacesaver Systems Inc.

#### III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

##### **A. X ONLY ONE RESPONSIBLE SOURCE *(select all that apply)*:**

1. X RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

The upgrade requires new proprietary components, including controls, electronics, motors, and safety features, that are designed and manufactured by Spacesaver Systems Inc. to retrofit their own 22-year-old system. These parts are not available on the open market. The process of integrating these new proprietary electronics with the existing mechanical carriages is known only to the OEM and its authorized representatives.

Another company could not satisfy the Government's needs because they do not have the proprietary data, designs, or secret processes to manufacture or install compatible components that would successfully integrate with the existing Spacesaver shelving. Attempting to do so would require reverse-engineering the system, which would be cost-prohibitive and result in a non-warranted, likely malfunctioning system.

2. ☒ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

The sole authorized distributor and technical representative is Spacesaver Systems Inc. (doing business as Spacesaver Interiors) for the Washington D.C. Metropolitan area.

Evidence is provided in the "Sole Contractor Letter," which states that Spacesaver Systems Inc. is the only authorized Spacesaver Area Contractor for in the Washington DC area. The letter also confirms that their installers are factory-trained and certified. Installation by any other vendor would void the manufacturer's warranty.

3. ☐ **OTHER REASONS.**

**B. ☐ *BRAND NAME***

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

**C. ☐ *URGENT AND COMPELLING.*** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required: